

#	Case Name	Tentative
50	<i>Abarca vs. Hyundai Motor America</i>	The unopposed motion by Defendant Hyundai Motor America (“Defendant”) for an order compelling arbitration and staying the action is GRANTED. Defendant’s request to take judicial notice of the complaint filed in this action is denied. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may “simply call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9:53.1a.) A party moving to compel arbitration bears an initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165-166.) The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.” (<i>Bannister v. Marinidence Opco, LLC</i> (2021) 64 Cal.App.5th 541; see also <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1060 [holding same].) For this step, “it is not necessary to follow the normal procedures of document authentication.” (<i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218.) If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. Defendant met its initial burden of showing a written agreement to arbitrate the causes of